From: Marcus Bell <mbell@tollerby-freight.example>
Sent: Wednesday, March 12, 2025 4:41 PM
To: Priya Raman <praman@wenlowcroft.example>
Subject: Kestrel claim - your view on the indemnity cap

Priya,

Kestrel's solicitors say the cap in clause 14 does not apply to late deliveries. Before we answer them, can you tell me whether you think the cap holds, and what our exposure is if it does not? I need your advice before Friday's board call.

Marcus

From: Lena Fairbrook <lfairbrook@tollerby-freight.example>
Sent: Monday, March 17, 2025 9:05 AM
To: Tom Okoye <tokoye@tollerby-freight.example>
Cc: Priya Raman <praman@wenlowcroft.example>
Subject: Week 12 pallet counts

Tom,

Week 12 counts for Kestrel: Monday 22, Tuesday 18, Wednesday 25. Bay 4 is closed on Thursday for resurfacing, so load from Bay 2 that day.

Lena

From: Tom Okoye <tokoye@tollerby-freight.example>
Sent: Tuesday, March 18, 2025 2:12 PM
To: Lena Fairbrook <lfairbrook@tollerby-freight.example>
Subject: RE: Kestrel invoice details

Lena,

Accounts asked again: the legal entity name on the invoice should read "Kestrel Supply Co.", not "Kestrel Supplies". Their invoice address has not changed.

Tom

From: Dana Whitfield <dwhitfield@tollerby-freight.example>
Sent: Thursday, March 20, 2025 11:30 AM
To: Marcus Bell <mbell@tollerby-freight.example>
Subject: Chronology of Kestrel delivery failures - prepared at the request of counsel

Marcus,

As counsel asked, here is my draft chronology of the missed Kestrel deliveries for use in the dispute. Counsel needs it to assess our defence to the claim, so please keep it within the litigation team and do not circulate it.

Dana

From: Dana Whitfield <dwhitfield@tollerby-freight.example>
Sent: Monday, March 24, 2025 8:15 AM
To: All Depot Staff <depot-staff@tollerby-freight.example>
Subject: Lunch for Friday's driver safety training

Hi all,

Lunch for Friday's driver safety training will be sandwiches from the canteen at 12:30 in the training room. Let me know about dietary needs by Wednesday.

Dana

From: Marcus Bell <mbell@tollerby-freight.example>
Sent: Friday, April 4, 2025 5:02 PM
To: Depot Managers <depot-managers@tollerby-freight.example>
Subject: Q2 depot plan

All,

Thanks for the Q1 numbers. Here is the plan for the second quarter, so you can set your rotas now.

Brayford Park moves to two loading slots a day from April 14, at 06:00 and 13:00. Bay 4 reopens on April 7 after the resurfacing, and Bay 2 goes back to returns only. The new pallet scanners arrive in the week of April 21; each depot gets two, and the yard office will book the training. Overtime stays capped at six hours a week per driver until the new rota settles. Please send me your holiday plans for May and June by April 18, and flag any week where you would be short of drivers or forklift cover. The quarterly safety walk is on May 9 at every depot, starting at 10:00, and I would like each of you to lead the one on your own site.

One more thing, on Kestrel. Our General Counsel has advised that the February delivery logs may be needed as evidence in their claim against us. Do not delete or edit them, and send any question about the claim to him before you reply to anyone at Kestrel. His advice on our position is for the management team only, so please do not forward this paragraph.

Marcus